From: Nicholas Scarr <nscarr@quantlogic.com>
To: Andy Lyne <Andy.Lyne@qlaims.com>
CC: Claims <Claims@qlaims.com>, Simon Fenwick <SFenwick@qlaims.com>, Sarah Romain <sarah.romain@qlaims.com>
Date: Saturday 31 January 2026 at 10:59
Subject: Re: Qlaim1816 N Scarr Fw: Our Ref: 90964727192, Insurer Ref: LBGSBP0073077, Policyholder: Mrs Louisa Scarr, Mr Nicholas Scarr SO24 9BE @909647271:92 #General#Correspondence#

Dear Andy,

Without Prejudice – Conditional Acceptance to Commence Works

We refer to *your email dated 30 January*, setting out the proposal advanced by Garrett Young on behalf of insurers.

The proposal *falls materially short of our requirements*, and *significant substantive issues remain outstanding*, including reinstatement scope and adequacy, associated losses, *and the contents claim, which remains unresolved*.

Notwithstanding this, and *strictly on a without prejudice basis*, we are prepared to accept the proposal *solely to allow reinstatement works to commence*, as an interim and pragmatic step to avoid further delay.

This position is taken in light of the *expert evidence obtained*, together with our own *extensive research and enquiries*, all of which highlight a *clear conflict with the position adopted by insurers*. This includes, in particular, the proposed waterproofing measures, which are advised to be *fated to fail*, and the fact that the proposal *does not address the issues raised in Dr Vanya Gant's letter*, which are of *critical importance* given the health risks arising from sewage contamination and any delay or incomplete remediation.

For the avoidance of doubt, this acceptance:

-

is *not* acceptance of any cash settlement,

-

is *not* a full or final settlement of the claim,

-

does *not* amount to agreement as to scope, adequacy, liability, causation, or quantum,

-

does *not* include the contents claim, and

-

does *not* waive any rights.

All rights are expressly reserved.

In the interests of advancing matters as quickly as possible, I have asked *Silks* to attend and commence the first stage of the works at the earliest opportunity. Our intention is for works to begin *on Monday 13 February*, subject to receipt of the required deposit. I will forward the first invoice as soon as it is received. In parallel, I will liaise with *Maclennans* so that they are ready to mobilise at the earliest opportunity once Silks have completed their stage of the works.

Please confirm that insurers have authorised works to proceed on this basis.

Best regards,

Nicholas
Nicholas Scarr

On Fri, 30 Jan 2026 at 08:50, Andy Lyne <Andy.Lyne@qlaims.com> wrote:

> Good morning Nick,
>
> I hope you're well.
>
> We have now received the decision regarding the building works at your
> property, including waterproofing.
>
> Garrett Young has asked me to forward the email below to you for your
> review.
>
> Best regards
>
>
> *Andy Lyne*
> Qlaims Adjuster
>
>

> Mob: +44 (0) 7887522332
>
>
>
> *Qlaims Limited*
>
> Level 30, The Leadenhall Building
>
> 122 Leadenhall Street
>
> London EC3V 4AB
>
>
>
> *Qlaims.com
> <https://link.edgepilot.com/s/600afff4/jcECHIRza0_EkGLnuNPkLg?u=https://qlaimslimited.sharepoint.com/Shared%2520Documents/Branding/Qlaims%2520Templates/Qlaims.com>*
>
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> *[image: Logo Description automatically generated]
> <https://link.edgepilot.com/s/94acf67e/3FpDnbx0b0C-ocdszS7-Gw?u=http://www.linkedin.com/company/qlaims-limited/>*
>
>
>
> Connect with us on LinkedIn to keep up to date with our evolving claims
> products and services – our Qlaims Insurance and Qlaimstech is really
> making a difference to the way Clients' claims are handled!
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> <https://link.edgepilot.com/s/77577c18/i1bx4JhVnUW1WSC6gH-M5Q?u=https://qlaims.com/privacy-policy/>* to
> align with the General Data Protection Regulation. All our communications
> are also compliant with the Privacy and Electronic Communications Regulation
> ----------
> *From:* Garrett Young <Garrett.Young@davies-group.com>
> *Sent:* 29 January 2026 16:44
> *To:* Andy Lyne <Andy.Lyne@qlaims.com>
> *Subject:* Our Ref: 90964727192, Insurer Ref: LBGSBP0073077,
> Policyholder: Mrs Louisa Scarr, Mr Nicholas Scarr SO24 9BE @909647271:92
> #General#Correspondence#
>
>
> Hi Andy,
>
>
>
> Please pass on the below to Mr Scarr.
>
>
>
>
>
> Dear Mr Scarr,
>
>
>
> We have been reviewing the costs and works with insurers and agreed to the
> below.
>
>
>
> You will note that the cost for the pumps and battery backup has been
> removed. The reason for this is that these are considered betterment given
> that pumps did not exist prior.

>
>
>
> It should be noted that we have agreed that there was a form of damp
> proofing in the walls which is why we have agreed for the replacement of
> this material and confirm that this approach that has been agreed is far
> superior then what was previously in place.
>
>
>
> We have agreed to the trenching within the property as this is part of the
> Cementous coatings works that are being undertaken.
>
>
>
> We are also not agreeing to the ACO drains as these too would be
> considered betterment and which you have withdrawn these costs.
>
>
>
> The above is insurers final decision regarding the reinstatement.
>
>
>
> Maclennan Quote
>
> 36,439.00
>
> Cavity Drain Waterproofing
>
> 984.00
>
> Commissioning
>
> 16,367.00
>
> Cementitious coatings
>
> 1,662.39
>
> Guarantee

>

> -19,252.00

>

> less lines 8, 9,10, 11, 12, 13

>

> 36,200.39

>

> total on Maclennan

>

> Silk Services QU-2730

>

> 6,630.00

>

> coatings only

>

> does not include rear drainage

>

> Silk Services QU-2721

>

> 53,470.00

>

> Reinstatement and decorations

>

> -1,150.00

>

> less ACO Drain, may need to amend for

>

> the plumbing and electric to the pumps

>

> Howdens

>

> 12,296.92

>

> Kitchen

>

> 2,593.87

>

> Worktop

>

> 110,041.18

>

> Total above net VAT
>
> 22,008.24
>
> VAT on the above
>
> 132,049.42
>
> Total potential disbursement for Building
>
>
>
>
>
> We have yet to agree the contents and we ask you to contact Bio Response,
> if you have not done so already, so that they may proceed with the removal
> of the items on the first floor and sorting through the items in storage
> for disposal and cleaning.
>
>
>
> The accommodation costs are agreed per past billing to allow time for
> repairs. A payment for the January and February costs should have been
> received by you recently.
>
>
>
> As always if you have any questions, please let me know.
>
>
>
>
>
> Kind regards,
>
> *Garrett Young* Cert CILA Cert CII
>
> Senior Loss Adjuster - Major and Complex Loss
>
>
>

> [image: Davies Group]

> <https://urldefense.proofpoint.com/v2/url?u=http-3A__daviesgroupintranet.com_&d=DwMGaQ&c=euGZstcaTDllvimEN8b7jXrwqOf-v5A_CdpgnVfiiMM&r=MT5VbeQKBd_vwUNNAfIyGWZJr04ppZTAKyQbtDMu1DI&m=iskxMxtW0NKup5uzxAWU9HnBjkvBqNv2TFs5DbO5ElIUK6b-ETdQdy7sy3M-2aRV&s=iJ4rTTyAsU4SsvXUHila3COfaqAC4NiDQ4eKWCS8mPE&e=>

>

> *Davies Group Ltd*

>

> OFFICE: 0344 856 2202 Two Smithfield, Leonard Coates Way, Stoke on Trent

> ST4 9FZ,

>

> MOBILE: 07974 886285

>

> EMAIL: Garrett.Young@davies-group.com

>

> WEB: *www.davies-group.com

> <https://urldefense.proofpoint.com/v2/url?u=http-3A__www.davies-2Dgroup.com_&d=DwMGaQ&c=euGZstcaTDllvimEN8b7jXrwqOf-v5A_CdpgnVfiiMM&r=MT5VbeQKBd_vwUNNAfIyGWZJr04ppZTAKyQbtDMu1DI&m=iskxMxtW0NKup5uzxAWU9HnBjkvBqNv2TFs5DbO5ElIUK6b-ETdQdy7sy3M-2aRV&s=nbudkjtJRysSnoKluhI8knAJMIpWcFtEoZ31DvAlDT0&e=>*

>

>

>

> *Upcoming Holiday: TBC*

>

>

>

> When responding, please cc * ADJUSTER EMAIL ADDRESS *as all email replies

> are automatically sent to adjuster.correspondence@davies-group.com which

> saves to your claim file

>

>

>

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>
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>
> American Claims Management, Inc. (DBAs: ACM Adjusters, ACM, Inc., ACM
> Claims Management, Investigation Solutions, National Claims Connection,
> National ConnectForce Claims), Company Reg: 33-0828851, 2544 & 2548
> Campbell Place, Carlsbad, California 92008 USA
> ARM Claims Incorporated, Company Reg: 83-1078283, 222 E Dunklin St Ste 102
> Jefferson City, MO 65101 USA
> Associated Loss Adjusters Ltd, Company Reg: 247275, Unit 10B, Beckett Way,
> Park West Business Park, Dublin, D12W702 Ireland
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> In: UK

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> 1209 Orange St, Wilmington, New Castle, DE, 19801 USA
> Claims Management Services Limited, Company Reg: 04313136, Registered In:
> UK
> ClaimsPro LP, Company Reg: 815883467, 145 King Street West, Suite 620,
> Toronto, Ontario, M5H 1J8 Canada
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> Hamilton, Bermuda HM 11 Bermuda
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> Stephanie: Avenue Louise 54, 1050 Ixelles Belgium
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> Lane, Lakewood Ranch, FL 34202 USA
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> Street, Corporation Trust Center, in the City of Wilmington, County of New
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> Registered In: UK
> Davies Consulting & Managed Services Limited, Company Reg: 06786292,
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> Avenue, Hamilton, HM 11 Bermuda

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> Suite 2700 Stantec Tower, 10220 – 103 Avenue NW, Edmonton, Alberta T5J 0K4
> Canada
> Davies Insurance Management, LLC, Company Reg: 0381783, 135 Allen Brook
> Lane, Suite 101, Williston, VT, 05495, USA
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> Place, 666 Burrard Street, Vancouver BC V6C 2Z7 Canada
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> 3, 20121 Milano MI Italy
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> UK
> Davies Learning Solutions Limited, Company Reg: 09063924, Registered In: UK
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> Highway, Suite 101, Rocky Hill, CT, 06067 USA
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> UK
> Davies US, LLC, Company Reg: 84-3008893, Corporation Trust Center, 1209
> Orange Street, Wilmington, DE 19801 USA

> Direct Group Property Services Limited, Company Reg: 06067034, Registered
> In: UK
> Direct Validation Services Limited, Company Reg: 03566382, Registered In:
> UK
> Eastwell Contractor Management and Claim Care Ltd, Company Reg: 04391050,
> Registered In: UK
> Farradane Limited, Company Reg: 01387840, Registered In: UK
> Frontier Adjusters, Inc. Company Reg: 84-0484390, 1900 W. Littleton
> Boulevard, Littleton, CO 80120 USA
> Garwyn Ireland Limited, Company Reg: 279634, Unit 10B, Beckett Way, Park
> West Business Park, Dublin 12, D12 W702, Ireland
> Garwyn Limited, Company Reg: 01030489, Registered In: UK
> GBB (UK) Holdings Limited, Company Reg: 07121407, Registered In: UK
> GBB (UK) Ltd, Company Reg: 01925858, Registered In: UK
> Grovelands Resourcing Limited, Company Reg: 07036418, Registered In: UK
> ICA LP (DBAs: Insurance Claims Adjusters, LP, Insurance Claims Adjusters,
> Limited Partnership, ICA, Limited Partnership, ICA, Limited Partnership),
> Company Reg: 32-0430586, 11405 North Community House Road, Suite 400
> Charlotte, NC 28277 USA
> Jeco Excess Agency, Inc., Company Reg: 59-2756585, 6015 Resource Lane,
> Lakewood Ranch, FL 34202 USA
> JMD Specialist Insurance Services Group Limited, Company Reg: 04577053,
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> Street, Suite 2100, San Diego, CA 92101 USA
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> la Castellana 143, 4º derecha CP 28046, Madrid Spain
> Matson, Driscoll & Damico KK, Company Reg: 0100-01-152437, Kyobashi Touhou
> Center Building 5F, 2-5-2 Kyobashi, Chuo-ku, Tokyo 104-0031 Japan
> Matson, Driscoll & Damico PTY Limited, Company Reg: 132 285 306, Level 10
> Challis House, 4 Martin Place, Sydney, NSW 2000 Australia
> Matson, Driscoll & Damico, (Dubai), Ltd, Company Reg: 1455, Office 402,
> Level 4 - Index Tower - Dubai International Financial Centre - Dubai UAE
> Matson, Driscoll & Damico, (Taiwan) Limited, Company Reg: 60788479, 2F,
> Room Number 127, No. 170, Section 3, Nanjing East Road, Zhongshan District,
> Taipei City, Taiwan

> Matson, Driscoll & Damico, (Thailand) Limited, Company Reg: 0105558186771,
> 98 Sathorn Square, Room Number 3766A, 37 Floor, North Sathorn Road, Silom,
> Bangrak, Bangkok, 10500 Thailand
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> Falls Drive, Wilmington, DE 19808 USA
> Matson, Driscoll & Damico, Co., Ltd, Company Reg: 110111-7236189, 7F,
> Tower 1, Gran Seoul, 33 Jong-ro, Jongno-gu, Seoul, 03159 South Korea
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> Blanche, 75009 Paris France
> Matson, Driscoll & Damico, Limited, Company Reg: 1291737, Room #504-506,
> 5/F, Tai Tung Building, 8 Fleming Road, Wan Chai Hong Kong
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> Dr., Suite 201, Coral Springs, FL 33067 USA
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> West - Suite 400, Toronto, ON M5H 1B6 Canada
> Matson, Driscoll & Damico, PTE. Limited, Company Reg: 200309825M, 10
> Collyer Quay, #05-10 Ocean Financial Centre, 049315 Singapore
> Matson, Driscoll & Damico, UK LLP, Company Reg: OC306349, Marlow House -
> 1A Lloyds Avenue - London EC3N 3AA UK
> MDD Brasil Consultoria LTDA, Company Reg: 23.752.394/0001-30, Avenida Dr.
> Chucri Zaidan, 1550 - Conjunto 1816, Vila São Francisco, São Paulo,
> 04711-130 Brazil
> MDD Deutschland GmbH, Company Reg: HRB 86071, Peter-Müller-Straße 3, 40468
> Düsseldorf Germany
> MDD Fee Fund Administration Limited, Company Reg: 13917365, Marlow House -
> 1A Lloyds Avenue - London EC3N 3AA UK
> MDD International Limited, Company Reg: 10492214, 4 More London,
> Riverside, London, SE1 2AU UK
> MVP Advisory Group, LLC, Company Reg: 80-0828320, Illinois Corporation
> Service Company, 801 Adlai Stevenson Drive, Springfield, IL, 62703 USA
> Nationwide Property Assistance Ltd (Trading Names: Davies Emergency
> Response, NPA 24:7, NPA Ltd) , Company Reg: 08964573, Registered In: UK
> Authorised and regulated by the Financial Conduct Authority (FCA) - 659799
> Nixon and Company, Company Reg: 43-1074043, 222 E Dunklin St Ste 102
> Jefferson City, MO 65101 USA
> Pario Engineering & Environmental Sciences LP, Company Reg: 815688668, 145
> King Street West, Suite 620, Toronto, Ontario, M5H 1J8 Canada
> Pario Forensic Accounting, Inc., Company Reg: 35-2697219, 222 E Dunklin St
> Ste 102 Jefferson City, MO 65101 USA
> PJ Web Solutions Limited, Company Reg: 04100402, Registered In: UK
> Preferred Governmental Claim Solutions, Inc., Company Reg: 20-1565528, 615

> Crescent Executive Court, Suit 600 Lake Mary, FL 32746 USA
> Premier Claims Management, LLC, Company Reg: 65-0161093, 2020 N Tustin
> Ave, Santa Ana, California 92705 USA
> ProAdjust Limited, Company Reg: 380982, Unit 10B, Beckett Way, Park West
> Business Park, Dublin 12, D12 W702 Ireland
> Quest Bermuda Holdings Limited, Company Reg: 42704, Crawford House, 50
> Cedar Avenue, Hamilton HM, 11 Bermuda Bermuda
> Quest Captive Management, LLC, Company Reg: 45-3187943, 1209, Orange
> Street, Corporation Trust Center, in the City of Wilmington, County of New
> Castle, Delaware 19801 USA
> Quest Intermediaries (Bermuda) Ltd, Company Reg: 04985, Crawford House, 50
> Cedar Avenue, Hamilton HM, 11 Bermuda
> Quick Internet Software Solutions, Inc., Company Reg: 74-2952969, 3206
> Earl Rudder Freeway South College Station TX 77845 USA
> SCM (US) LLC, Company Reg: 38-4021043, 251 Little Falls Drive, Wilmington,
> DE 19808 USA
> SCM Insurance Services GP, Inc., Company Reg: 816569057, Suite 3700,
> Bankers Hall West, 888 3rd Street SW Calgary, AB T2P 5C5 Canada
> SCM Insurance Services, Inc., Company Reg: 895266997, Suite 3700, Bankers
> Hall West, 888 3rd Street SW Calgary, AB T2P 5C5 Canada
> Superior Recovery Services, Inc. (A subsidiary of ACM), Company Reg:
> 27-2021770, 300 North Beach Street, Daytona Beach FL 32114 USA
> Surveyorship Limited, Company Reg: 06634718, Registered In: UK
> Thornpart Adjusters Ltd, Company Reg: 357224, Unit 10B, Beckett Way, Park
> West Business Park, Dublin 12, D12 W702, Ireland
> Topmark Claims Management Limited, Company Reg: SC305608, 160 Bath Street,
> Glasgow, Scotland, G2 4TB UK
> Total Loss Settlement Service Limited, Company Reg: 04433145, Registered
> In: UK
> Ufton Associates Limited, Company Reg: 04471233, Registered In: UK
> USIS, Inc. (DBAs: Amerisys, United Self Insured Services), Company Reg:
> 20-4580645, 5728 Major Boulevard Suite 450 Orlando, FL 32819 USA
> Vehicle Replacement Group Limited, Company Reg: 09957616, Registered In: UK
> Veriphy Limited, Company Reg: 05066478, Registered In: UK
> Verso Damage Management Solutions Ltd, Company Reg: 10237379, Registered
> In: UK
>

Attachments (1):

- image001.png (8,169 bytes)